

# LAW

## INTRODUCTION

Law is intended to ensure fairness and to promote and maintain justice in society. Legal studies focuses on how rules are created, how they evolve, and how they are enforced and adjudicated within the legal system. Through the study of law, students examine how various forces shape law, and how law shapes interactions between and among people, institutions, and governments. The study of law enables students to develop an understanding of various areas of law, the relevance of law to everyday life, and the influence of entrenched rights and responsibilities on the Canadian legal system.

## Strands

The Grade 11 and 12 law courses each have five strands. In all of these courses, strand A, The Inquiry Process and Skill Development in Legal Studies, is followed by four content strands, which are organized thematically.

### **Citizenship Education**

The expectations in the Grade 11 and 12 law courses provide opportunities for students to explore a number of concepts connected to the citizenship education framework (see page 13).

## The Concepts of Legal Thinking

The four concepts of legal thinking – legal significance, continuity and change, interrelationships, and legal perspective – underpin thinking and learning in all law courses in the Canadian and world studies program. At least one concept of legal thinking is identified as the focus for each overall expectation in strands B–E of these courses. The following chart describes each concept and provides sample questions related to it. These questions highlight opportunities for students to apply a specific concept in their studies. (See page 16 for a fuller discussion of the concepts of disciplinary thinking.)

| Legal Significance                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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| <p>This concept requires students to determine the importance of key legal principles, cases, social forces, and events in the evolution of law. Legal significance is usually determined by the impact that a law, court decision, or legal principle has on legal structures and/or the lives of citizens, or by the impact of social and/or political forces on the development of law.</p> <p><b>Related Questions*</b></p> <ul style="list-style-type: none"> <li>– What aspect of human rights was addressed in the Oakes case (1986)? What impact did the Supreme Court of Canada decision in that case have on Canadian law relating to subsequent Charter challenges to human rights violations? (CLU3M, C1.3)</li> <li>– Why is it important for an accused person to be considered “innocent until proven guilty”? (CLU3E, B1.3)</li> <li>– Should people be legally required to vote in an election? (CLU3E, C1.1)</li> <li>– What are some issues in employment or contract law that you might have to deal with in your everyday life? What forms of legal assistance are available to help you deal with them? (CLN4C, B1.2)</li> </ul> |
| Continuity and Change                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <p>This concept requires students to analyse how and why laws, justice system structures and practices, legal precedents, and legislative agendas change over time. Students consider forces that reinforce continuity and factors that have both short-term and long-term effects on legal systems and the administration of justice.</p> <p><b>Related Questions</b></p> <ul style="list-style-type: none"> <li>– How did Donald Marshall’s overturned conviction (in 1983) affect rules governing judicial procedures in the Canadian criminal justice system? (CLU3M, B4.3)</li> <li>– What legal changes are currently being considered to combat cyberbullying? (CLU3E, B2.4)</li> <li>– Why was Ontario’s Environmental Bill of Rights (1993) considered groundbreaking in terms of environmental law? (CLN4U, E2.1)</li> <li>– How have specific events such as the 9/11 attacks changed laws and regulations related to security? (CLN4C, D3.2)</li> </ul>                                                                                                                                                                                    |

\* The “related questions” are drawn directly from the overview charts that precede the Grade 11 and 12 law courses and from the sample questions that accompany many specific expectations.

### Interrelationships

This concept requires students to consider how laws affect society and how society affects laws. Students examine the roles of the different branches of government in the development of law in Canada and how laws affect or accommodate different groups. In addition, this concept requires students to consider the interactions between various sides in trials and other legal disputes.

#### Related Questions

- How does family law reflect societal values, beliefs, and norms? (CLU3M, Overview)
- How can individuals and groups in Canada influence the executive and legislative branches of government to bring about legal change? (CLU3M, B3.1)
- What are some key influences on the development of law? (CLN4U, Overview)
- What constitutes a reasonable limitation of free speech in a democracy? (CLN4C, C1.2)

### Legal Perspective

This concept requires students to consider legal principles such as fairness, justice, equality, the presumption of innocence, and the rule of law when analysing a variety of legal issues, controversies, and cases. Students will also come to understand the role of law in balancing competing rights and freedoms.

#### Related Questions

- What are some examples of current media coverage of issues in Canadian criminal law? In your view, how accurate and/or appropriate is this media coverage? (CLU3M, E3.4)
- Why did the courts rule against both Sue Rodriguez (in *Rodriguez v. British Columbia*) and Robert Latimer (in *R. v. Latimer* [1997 and 2001]) despite considerable public sympathy for their positions? (CLU3E, C2.2)
- What is the role of the courts in balancing competing rights and freedoms? (CLN4U, C3.1)
- In view of developments in technology, are existing laws adequate to protect individuals, corporations, and governments from invasions of privacy? Why or why not? (CLN4U, E4.1)
- What happens legally when human rights compete with each other? (CLN4C, Overview)

## The Inquiry Process in Legal Studies

In each law course in the Canadian and world studies curriculum, strand A focuses explicitly on the inquiry process in legal studies, guiding students in their investigation of laws and regulations, rights and freedoms, court decisions, and legal concepts, processes, and issues. This inquiry process is *not* intended to be applied in a linear manner: students will use the applicable components of the process in the order most appropriate for them and for the task at hand. Although strand A covers all of the components of the inquiry process, it is important to note that students apply skills associated with the inquiry process throughout the content strands in each course. (See page 32 for a fuller discussion of the inquiry process in the Canadian and world studies program.)

The following chart identifies ways in which students may approach each of the components of the inquiry process in legal studies.

| Formulate Questions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
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| <p>Students formulate questions:</p> <ul style="list-style-type: none"> <li>– to explore various issues, concepts, laws and regulations, and legal cases that are related to the overall expectations in order to identify the focus of their inquiry</li> <li>– to help them determine which key concept (or concepts) of legal thinking is relevant to their inquiry</li> <li>– that reflect the selected concept(s) of legal thinking</li> <li>– to develop criteria that they will use in evaluating evidence and information; in making judgements, decisions, or predictions; in reaching conclusions; and/or in solving problems</li> </ul>                                                                       |
| Gather and Organize                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <p>Students:</p> <ul style="list-style-type: none"> <li>– collect relevant evidence and information from a variety of primary sources and secondary sources,<sup>a</sup> including community resources<sup>b</sup></li> <li>– determine if their sources are credible, accurate, and reliable</li> <li>– identify the purpose and intent of each source</li> <li>– identify the points of view in the sources they have gathered</li> <li>– use a variety of methods to organize the evidence and information they have gathered</li> <li>– record the sources of the evidence and information they are using</li> <li>– decide whether they have collected enough evidence and information for their inquiry</li> </ul> |

a. Primary sources may include, but are not limited to, legal cases, legislation, policy documents, and treaties. Secondary sources may include, but are not limited to, analyses of legal opinions, editorials, news articles, reference books, and documentaries and other films. Depending on the context, digital sources, including social media and websites, can be either primary or secondary sources.

b. Community resources may include, but are not limited to, a range of resources from community groups and associations, government or law offices, and non-governmental organizations.

| Interpret and Analyse                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
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| <p>Students:</p> <ul style="list-style-type: none"> <li>– analyse evidence and information, applying the relevant concepts of legal thinking (see preceding chart)</li> <li>– use different types of tools to help them interpret and/or analyse their evidence and information</li> <li>– identify the key points or ideas in each source</li> <li>– interpret data and representations of data (e.g., graphs, matrices, statistical tables) to help them analyse issues, events, and/or developments</li> <li>– analyse their sources to determine the importance of an issue, law, and/or legal decision for individuals and/or groups, including different groups</li> <li>– identify biases in individual sources</li> <li>– determine if all points of view are represented in the source materials as a whole, and which, if any, are missing</li> </ul> |
| Evaluate and Draw Conclusions                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <p>Students:</p> <ul style="list-style-type: none"> <li>– synthesize evidence and information and make informed, critical judgements based on that evidence and information</li> <li>– make connections between different factors and contexts when analysing issues, developments, laws, and/or legal decisions</li> <li>– determine the short- and long-term impact of issues, laws and regulations, practices, and/or legal decisions for different individuals, communities, groups, and/or regions</li> <li>– assess the ethical implications of issues, laws, and/or legal decisions</li> <li>– reach conclusions about the subject of their inquiry, and support them with their evidence</li> <li>– make predictions based on their evidence and/or information</li> </ul>                                                                              |
| Communicate                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <p>Students:</p> <ul style="list-style-type: none"> <li>– use appropriate forms (e.g., oral, visual, written, multimedia) for different audiences and purposes</li> <li>– communicate their arguments, conclusions, and predictions clearly and logically</li> <li>– use legal terminology and concepts correctly and effectively</li> <li>– cite sources, using appropriate forms of documentation</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

# Legal Studies, Grade 12

## College Preparation

CLN4C

This course provides a foundation for students who wish to pursue a career that requires an understanding of law. Students will explore the importance of law, analysing contemporary legal issues and their relevance to daily life. They will investigate the requirements for various law-related careers as well as legal responsibilities in the workplace. Students will apply the concepts of legal thinking and the legal studies inquiry process to investigate their rights and responsibilities, legal processes and structures, and the role of law in a changing society.

**Prerequisite:** Civics and Citizenship, Grade 10, Open

### OVERVIEW

The course has five strands. Instruction and learning related to the expectations in strand A are to be interwoven with instruction and learning related to expectations from the other four strands. Strand A must not be seen as independent of the other strands. Student achievement of the expectations in strand A is to be assessed and evaluated *throughout* the course.

### Strand A

| A. The Inquiry Process and Skill Development in Legal Studies                                                                                                                        |
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| Overall Expectations                                                                                                                                                                 |
| <b>A1. The Inquiry Process in Legal Studies:</b> use the legal studies inquiry process and the concepts of legal thinking when investigating current legal issues                    |
| <b>A2. Developing Transferable Skills:</b> apply in everyday contexts skills developed through the study of law, and identify careers in which a background in law might be an asset |

(continued)

**Overview** *(continued)*

Throughout this course, when planning instruction, teachers should weave the expectations from strand A in with the expectations from strands B–E.

**Strands B–E**

| Overall Expectations and Related Concepts of Legal Thinking                                                                                                                                                                                                                                                                                          | Big Ideas*                                                                                                                                                                                                                                                                              | Framing Questions*                                                                                                                                                                                                                                                                              |
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| <b>B. Legal Foundations</b>                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                 |
| <b>B1. Purpose and Processes of Law:</b> explain purposes of law, legal structures and processes, and fundamental principles of justice in Canada ( <b>FOCUS ON:</b> <i>Legal Significance</i> )                                                                                                                                                     | Law is based on principles derived from society's beliefs about what is fair and just.                                                                                                                                                                                                  | What is just? What is fair?<br><br>How does the law affect your life?                                                                                                                                                                                                                           |
| <b>B2. Development of Law:</b> explain how governments and societal attitudes and values have influenced the development of law in Canada ( <b>FOCUS ON:</b> <i>Legal Significance; Continuity and Change</i> )                                                                                                                                      | Law changes over time in response to a variety of factors, including what society values and believes in, technological advances, and political trends.                                                                                                                                 | How has the law changed and how has it stayed the same?<br><br>Does the Canadian justice system treat and protect all groups of people equally?                                                                                                                                                 |
| <b>B3. Law and Diversity:</b> analyse the ability of Canadian law to uphold the rights and accommodate the needs of diverse individuals and groups ( <b>FOCUS ON:</b> <i>Legal Significance; Legal Perspective</i> )                                                                                                                                 | Vulnerable people and groups need laws to protect their interests.                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                 |
| <b>C. Rights and Responsibilities</b>                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                 |
| <b>C1. Fundamentals of Human Rights Law in Canada:</b> explain the legal importance of human rights law in Canada, with particular reference to the Canadian Charter of Rights and Freedoms ( <b>FOCUS ON:</b> <i>Legal Significance</i> )                                                                                                           | The Canadian Charter of Rights and Freedoms and other rights-related legislation represent Canadian ideals and principles related to human rights.                                                                                                                                      | Why are human rights laws important?<br><br>What happens legally when human rights compete with each other?                                                                                                                                                                                     |
| <b>C2. Rights and Responsibilities:</b> analyse from a legal perspective how the rights and responsibilities of individuals, groups, and governments are connected ( <b>FOCUS ON:</b> <i>Interrelationships; Legal Perspective</i> )                                                                                                                 | Canadians have legal rights and responsibilities.<br><br>Individuals and groups within the justice system have complementary roles and responsibilities in administering Canadian law.<br><br>There are competing beliefs about the appropriate extent of personal rights and freedoms. | Does Canadian law provide adequate protection of human rights?<br><br>Does Canadian law provide adequate protection of the environment?<br><br>How do diversity and changing beliefs about gender equality, freedom of expression, and freedom of religion influence Canadian human rights law? |
| <b>C3. Influences on Human Rights Issues:</b> analyse from a legal perspective the role of forces such as globalization, technological change, media influence, and evolving societal attitudes in strengthening or weakening protections for human rights in Canada and abroad ( <b>FOCUS ON:</b> <i>Continuity and Change; Legal Perspective</i> ) | The recognition and protection of human rights in Canada and around the world are affected by forces such as globalization, technological change, and the influence of social media.<br><br>Human rights legislation is influenced by diverse and changing social beliefs.              |                                                                                                                                                                                                                                                                                                 |

\* See page 17 for a discussion of the purpose of big ideas and framing questions.

| Overall Expectations and Related Concepts of Legal Thinking                                                                                                                                                                                                    | Big Ideas*                                                                                                                                                                                | Framing Questions*                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
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| D. Contemporary Legal Issues                                                                                                                                                                                                                                   |                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| D1. Law and Society: analyse the role of law in contemporary society (FOCUS ON: Legal Significance)                                                                                                                                                            | Laws evolve to protect the vulnerable and society as a whole.                                                                                                                             | How do law enforcement, criminal procedures, and sentencing reflect and protect the rights and interests of the accused, the victim, and society as a whole?<br><br>What are some proposed changes to the law that are controversial? Why are they controversial?                                                                                                                                                                                                                                              |
| D2. Legal Structures and Processes: describe laws and processes for dealing with different types of legal offences and disputes in Canada (FOCUS ON: Legal Significance; Interrelationships)                                                                   | Family law exists to protect all members in domestic relationships, even when the relationships end.                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| D3. Emerging Legal Issues: explain the legal implications of a variety of current issues, both in Canada and internationally (FOCUS ON: Continuity and Change; Legal Perspective)                                                                              | International political events and forces may prompt changes to domestic laws in Canada.                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| E. Law in the Workplace                                                                                                                                                                                                                                        |                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| E1. Law and Careers: describe the educational, training, certification, and other professional requirements for various careers where an understanding of law is important (FOCUS ON: Legal Perspective)                                                       | There are a variety of careers, with different requirements, duties, and qualifications, where an understanding of and interest in the law are important.                                 | How can you find information about careers that require an understanding of law?<br><br>What law-related career would best suit your academic skills, personality type, and aspirations? How should you prepare for that career? What goals could you set?<br><br>How does the law protect youth in the workplace?<br><br>Do workplace and employment laws strengthen or weaken businesses?<br><br>Should there be a legal right to strike?<br><br>Why do we need workplace laws that protect the environment? |
| E2. Roles and Responsibilities in the Workplace: analyse the roles and responsibilities of employees, managers, employers, corporations, and governments in the workplace (FOCUS ON: Interrelationships; Legal Perspective)                                    | Employment law attempts to balance the rights of business owners and workers.<br><br>Workplace laws are intended, in part, to protect the rights and freedoms of people in the workplace. |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| E3. Legal Issues in the Workplace: analyse legal issues related to the influence of new technologies, environmental concerns, and national and international events on the workplace (FOCUS ON: Legal Significance; Continuity and Change; Interrelationships) | National and international employment and workplace laws are influenced by the development of new technologies, environmental concerns, and the impact of globalization.                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

# A. THE INQUIRY PROCESS AND SKILL DEVELOPMENT IN LEGAL STUDIES

## OVERALL EXPECTATIONS

Throughout this course, students will:

- A1. The Inquiry Process in Legal Studies:** use the legal studies inquiry process and the concepts of legal thinking when investigating current legal issues;
- A2. Developing Transferable Skills:** apply in everyday contexts skills developed through the study of law, and identify careers in which a background in law might be an asset.

## SPECIFIC EXPECTATIONS

### A1. The Inquiry Process in Legal Studies

Throughout this course, students will:

- A1.1** formulate different types of questions to guide investigations into current legal issues (e.g., factual questions: *What checks and balances are in place to ensure that the judicial branch interprets and administers the law fairly and impartially?*; comparative questions: *What are some similarities and differences between criminal and civil law?*; causal questions: *What are some legal issues that might arise as a result of practices related to increased border security?*)
- A1.2** select and organize relevant evidence and information from primary and secondary sources (e.g., primary: *case law, legislation*; secondary: *newspapers, websites, journals, books*)
- A1.3** assess the credibility of sources relevant to their investigations (e.g., *establish criteria to help determine the reliability, accuracy, and relevance of information; compare how evidence is constructed or presented in different sources; consider the influence of factors such as bias, audience, purpose, context, and values*)
- A1.4** interpret and analyse legal issues (e.g., *arguments for and against legislation limiting the right to medical treatment for refugees in Canada; Quebec legislation restricting students' rights of assembly to protest higher tuition fees*) using evidence and information relevant to their investigations and a variety of tools and strategies
- A1.5** use the concepts of legal thinking (i.e., legal significance, continuity and change, interrelationships, and legal perspective) when analysing, evaluating evidence about, and formulating conclusions and/or judgements regarding legal issues (e.g., *apply the concept of legal significance when analysing the impact of the Oakes case on the Canadian legal system; apply continuity and change when investigating the evolution of legal definitions of marriage in Canada; apply the concept of interrelationships to help them understand considerations underlying the creation and implementation of labour and employment protection laws; take the concept of legal perspective into account when analysing competing interests relevant to Aboriginal treaty rights*)  
*Sample questions:* "What concept or concepts of legal thinking would be the most appropriate to consider when investigating the legal issues relevant to an individual or group challenge to the Canadian Charter of Rights and Freedoms? Why would this concept (these concepts) be particularly useful?"
- A1.6** evaluate and synthesize their findings to formulate conclusions and/or make informed judgements or predictions about the legal issues they are investigating  
*Sample questions:* "What conclusions do you reach after comparing the arguments and evidence for and against decriminalizing the possession of small amounts of marijuana for personal use?" "What are some reasons you or others might disagree with a verdict?" "What conclusions do you reach about whether the decision in the case achieved a proper balance between the need to protect minority rights and the need to respect freedom of expression?"

**A1.7** communicate their ideas, arguments, and conclusions using various formats and styles, as appropriate for the audience and purpose (e.g., *a debate on issues raised by section 1 of the Canadian Charter of Rights and Freedoms; a case study that looks at how the interpretation of Aboriginal rights to land use has changed over time; a mock trial based on an actual workplace health and safety case; a presentation on the legal obligations of businesses in Ontario to provide services for people with physical disabilities; a report on law-related careers based on interviews with people working in the legal, justice, and/or law-enforcement system*)

**A1.8** use accepted forms of documentation (e.g., *endnotes or footnotes, author/date citations, reference lists, bibliographies, credits*) to acknowledge different types of sources (e.g., *case law, legislation, websites, blogs, books, articles, oral interviews, archival sources*)

**A1.9** use terminology appropriate to the audience and purpose when communicating the results of their investigations (e.g., *vocabulary specific to their inquiry, terminology related to law and legal processes*)

**A2.2** apply in everyday contexts skills and work habits developed through investigations related to law (e.g., *conflict-resolution skills used to mediate or arbitrate disputes, reasoning skills used to assess the logical soundness of competing or adversarial arguments and decision-making skills to make a choice based on those arguments, oral communication and advocacy skills used to present persuasive arguments*)

**A2.3** use the concepts of legal thinking when analysing current events related to legal issues in order to enhance their understanding of these events and of the role of informed citizens (e.g., *to identify the legal issues raised by controversial questions*)

**A2.4** identify careers in which a legal background might be useful (e.g., *police officer, court clerk, bail supervisor, bailiff, court interpreter, corrections officer, lawyer, paralegal, entrepreneur, politician, employee of a non-governmental organization, community legal worker, lobbyist, children's aid worker, social worker, auditor, tax adjuster*)

## A2. Developing Transferable Skills

Throughout this course, students will:

**A2.1** describe ways in which investigations related to law can help develop skills, including the essential skills in the Ontario Skills Passport (e.g., *graphing, oral communication, technological, numeracy, literacy, decision-making skills*), that can be transferred to postsecondary opportunities, the world of work, and everyday life

# B. LEGAL FOUNDATIONS

## OVERALL EXPECTATIONS

By the end of this course, students will:

- B1. Purpose and Processes of Law:** explain purposes of law, legal structures and processes, and fundamental principles of justice in Canada (**FOCUS ON:** *Legal Significance*)
- B2. Development of Law:** explain how governments and societal attitudes and values have influenced the development of law in Canada (**FOCUS ON:** *Legal Significance; Continuity and Change*)
- B3. Law and Diversity:** analyse the ability of Canadian law to uphold the rights and accommodate the needs of diverse individuals and groups (**FOCUS ON:** *Legal Significance; Legal Perspective*)

## SPECIFIC EXPECTATIONS

### B1. Purpose and Processes of Law

**FOCUS ON:** *Legal Significance*

By the end of this course, students will:

- B1.1** explain the purpose of various categories of law (*e.g., substantive/procedural, provincial/federal/international, public/private*) and various areas of law (*e.g., administrative, constitutional, criminal, tort, contract, employment*)
- B1.2** explain the relevance of specific areas of law to everyday life (*e.g., contract law – relevant to: employment, purchasing goods and services, prenuptial agreements, purchasing property or renting accommodation; family law – relevant to: separation and divorce, child custody issues, wills and inheritance issues; copyright law – relevant to: the downloading and use of music, images, and digital software from the Internet*)  
*Sample questions:* “What are some issues in employment or contract law that you might have to deal with in your everyday life? What forms of legal assistance are available to help you deal with them?”
- B1.3** describe the legal structures (*e.g., different types of courts and tribunals*) and processes (*e.g., filing necessary documents, time limits, hiring a lawyer for a specific purpose, costs*) associated with civil actions, criminal prosecutions, and administrative law proceedings in Canada  
*Sample question:* “What procedures are involved in applying to the Landlord and Tenant Board for help in resolving a dispute about a rental agreement?”

- B1.4** explain the relevance of key principles of justice (*e.g., equality, equity, judicial independence, the rule of law, due process, the presumption of innocence, open courts*) to current legal issues and landmark cases in Canada (*e.g., the role of the Supreme Court of Canada; Roncarelli v. Duplessis, 1959; R. v. Oakes, 1986*)

### B2. Development of Law

**FOCUS ON:** *Legal Significance; Continuity and Change*

By the end of this course, students will:

- B2.1** explain how shifting societal attitudes, values, and customs have influenced the development of Canadian law (*e.g., laws relating to: the definition of marriage and family, voting rights, environmental conservation and stewardship, race, gender, sexual orientation, ethnicity, language, disability, treaty rights and land claims*)  
*Sample questions:* “What societal changes led to the recognition of same-sex marriage? What arguments related to the issue were made by individuals, governments, opposition parties, and interest groups?”
- B2.2** describe, with reference to both federal and provincial governments, the division of powers between the three branches of government in Canada that are relevant to law (*e.g., executive branch: power to initiate legislation and make judicial appointments; legislative branch: power to initiate, amend, and pass laws; judicial branch: power to interpret, enforce, and strike down or*

*alter legislation*), and explain how the division has affected the creation, implementation, and enforcement of law in Canada over time

**Sample questions:** “If you wanted to have a new law enacted in an area of provincial jurisdiction, what elected or appointed official in which branch of government would you contact first?” “If a court finds that a law violates the Canadian Charter of Rights and Freedoms, what options are available to address the Charter breach?”

### B3. Law and Diversity

**FOCUS ON:** *Legal Significance; Legal Perspective*

By the end of this course, students will:

**B3.1** explain various provisions in Canadian law (e.g., *Charter guarantees of rights [including equality rights, language rights, and minority language education rights]; Charter limitations clause [section 1] and notwithstanding clause [section 33]; constitutional protection of Aboriginal rights [Charter section 25, and Constitution Act section 35]*) that may be used to accommodate the interests and needs of diverse groups (e.g., *First Nations, Métis, and Inuit groups; women; racialized groups; new Canadians and refugees; vulnerable groups such as people with physical or intellectual disabilities, children, and the elderly; corporations and businesses; environmental groups; migrant workers; various ethnic groups*)

**Sample questions:** “How might various groups use laws to protect their interests and address their needs?” “How do people use the law to protect animals or plants?” “Why is section 1 of the Charter referred to as the ‘reasonable limits clause’? How is the Oakes Test applied to determine if an infringement on rights under this section is reasonably justified?”

**B3.2** analyse from a legal perspective the influence of diverse psychological, socio-economic, and sociological factors on the administration of law (e.g., *factors such as: limited access to legal services, poverty, mental illness, the quality of police-community relations, media publicity, advances in technology*)

**Sample questions:** “Why are there laws about media involvement in the legal process? What constraints does the law place on the media to limit its influence during legal proceedings?” “In what ways does the law protect the interests of people who have a mental disability?” “What are the challenges of delivering legal services in remote, isolated communities such as those in northern Ontario?”

**B3.3** analyse the ability of the justice system to respond equitably to various challenges (e.g., *language barriers, high costs, accessibility for people with disabilities, limited access to or ineligibility for educational and government services*) faced by people in potentially vulnerable groups (e.g., *people with low income, people with mental illness, immigrants, refugees, racialized groups, people in the LGBT community*)

**Sample questions:** “What are the eligibility criteria for access to legal aid?” “When can a decision about services such as benefits, social assistance, or social housing be appealed?” “What services are offered by legal aid clinics in your region and what are the related costs?”

# C. RIGHTS AND RESPONSIBILITIES

## OVERALL EXPECTATIONS

By the end of this course, students will:

- C1. Fundamentals of Human Rights Law in Canada:** explain the legal importance of human rights law in Canada, with particular reference to the Canadian Charter of Rights and Freedoms (**FOCUS ON:** *Legal Significance*)
- C2. Rights and Responsibilities:** analyse from a legal perspective how the rights and responsibilities of individuals, groups, and governments are connected (**FOCUS ON:** *Interrelationships; Legal Perspective*)
- C3. Influences on Human Rights Issues:** analyse from a legal perspective the role of forces such as globalization, technological change, media influence, and evolving societal attitudes in strengthening or weakening protections for human rights in Canada and abroad (**FOCUS ON:** *Continuity and Change; Legal Perspective*)

## SPECIFIC EXPECTATIONS

### C1. Fundamentals of Human Rights Law in Canada

**FOCUS ON:** *Legal Significance*

By the end of this course, students will:

- C1.1** explain the legal significance and scope of the rights and guarantees in the Canadian Charter of Rights and Freedoms (e.g., *the importance of constitutional entrenchment, the implications of the limitations clause [section 1]*)
- C1.2** explain the legal concept of competing rights, with reference to specific conflicts between different Charter rights and between human rights legislation and other legislation (e.g., *laws against hate speech versus Charter guarantees of freedom of expression; anti-terrorist legislation versus inadmissibility of evidence obtained under torture; rights of an accused person to cross-examine witnesses versus rights of alleged victims of sexual assault to maintain privacy*)  
  
**Sample questions:** “In what kinds of cases might a person’s privacy rights be legally set aside under the provisions of the Criminal Code?” “What constitutes a reasonable limitation of free speech in a democracy?” “What is the legal significance of *Saskatchewan (Human Rights Commission) v. Whatcott*, 2013, and *Delgamuukw v. British Columbia*, 1997?” “What are the conflicting rights in *R. v. Keegstra*, 1990?” “What are the limits on police interrogation?”

### C2. Rights and Responsibilities

**FOCUS ON:** *Interrelationships; Legal Perspective*

By the end of this course, students will:

- C2.1** describe some everyday legal responsibilities of Canadians (e.g., *responsibility to pay taxes, follow regulations for small business, meet health and safety standards, serve on a jury, meet contractual obligations of mortgage and loan agreements, respect the rights of others*)  
  
**Sample questions:** “Why is it important for people to be aware of the legal implications of the various types of contracts they may be asked to sign, such as rental agreements, cellphone plans, lease agreements, or bank loans?” “Why are Canadians required to pay income tax?” “Why is ignorance of the law not a legal defence?”
- C2.2** analyse from a legal perspective issues related to the right of individuals, groups, and governments to use natural resources, and the corresponding responsibilities/regulations related to environmental protection (e.g., *rights: access to water; Aboriginal hunting/trapping, fishing, and harvesting treaty rights; other hunting/trapping, fishing, and harvesting rights; mining rights; responsibilities/regulations: antipollution laws, licensing requirements, duty to consult,*

*environmental assessment requirements, reforestation laws, ecological restoration requirements)*

**Sample questions:** “What are the responsibilities of governments and/or industries when planning a development that has an environmental impact?” “What legal options are available to communities that might object to the potential negative environmental impact of a development?” “How do the regulations for a dry-cleaning business relate to the protection of natural resources?” “What kinds of actions should be taken when the safety of the water supply is threatened? What officials and/or institutions have the legal responsibility to ensure that these actions are taken?” “When you examine some landmark cases (e.g., *Delgamuukw v. British Columbia*, 1997; *R. v. Marshall*, 1999; *R. v. Powley*, 2003; *Haida Nation v. British Columbia [Minister of Forests]*, 2004; *Tsilhqot’in Nation v. British Columbia*, 2014), what do you notice about how the Supreme Court of Canada’s interpretation of Aboriginal rights to land use has changed?”

**C2.3** describe some harmful effects that people can experience when governments and the legal system do not recognize and protect rights and freedoms (e.g., *gender inequality in pay and promotion, wrongful conviction, unlawful detention and imprisonment, workplace harassment or discrimination, racial profiling*)

**Sample question:** “What were some of the concerns about police practices raised in the inquiry into the G20 protests in Toronto in 2010?”

**C2.4** describe current Ontario laws that are designed to protect the rights of youth (e.g., *Ontario’s Child and Family Services Act, youth employment laws*) and to regulate their behaviour (e.g., *driver’s licence regulations, age restrictions related to the sale of alcohol and tobacco*)

**Sample questions:** “At what age is youth employment legal in Ontario and under what conditions? What branch of government should you contact to report a suspected or actual violation of Ontario’s youth employment laws?” “What are the similarities and differences between the labour laws that protect adults and those that protect youth workers?” “What do you need to know about workplace safety prior to accepting a job?”

**C2.5** assess the level of consistency between government policies and actions and Canada’s stated commitment to the protection of human rights at home and abroad (e.g., *with respect to: trade agreements with versus economic sanctions against countries that do not respect human rights, provision of humanitarian aid to countries suffering*

*from civil unrest, standard of living on First Nations reserves and in remote communities, acceptance of and/or support for refugee claimants)*

**Sample questions:** “Should Canada trade with a country that violates human rights? What are some arguments for doing so? What are some arguments against doing so?” “In what way has Canada been criticized for not meeting its international rights obligations?” “Should Canadian companies be obligated to follow Canadian human rights laws when operating outside of Canada?”

### C3. Influences on Human Rights Issues

**FOCUS ON:** *Continuity and Change; Legal Perspective*

By the end of this course, students will:

**C3.1** analyse from a legal perspective some positive and negative effects of globalization on human rights protection in Canada and abroad (e.g., *globalization of communications can improve monitoring of rights violations and empower human rights advocates; economic globalization can contribute to imbalances of wealth and limit the rights of poor people; transnational corporations can evade employment and environmental protection laws by establishing operations in a country with weaker laws; globalization may prompt changes to immigration and labour laws to allow labour shortages to be met by temporary foreign workers, but these workers may have fewer rights than Canadian employees*)

**Sample questions:** “To what extent are Canadian businesses operating abroad required to comply with Canadian human rights laws?” “What practical and legal difficulties arise when enforcing rights in the online environment?” “What impact has globalization had on workers’ rights and labour standards? Why might a company move from Canada to a country with weaker labour standards? What alternatives, including those outside the legal system, are available to individuals or groups who oppose such moves?”

**C3.2** evaluate from a legal perspective the impact of advances in technology on human rights protection in Canada and in the world (e.g., *increased opportunities for education and access to information versus increased opportunities for identity theft, theft of intellectual property, and invasion of personal privacy [such as in airport security searches]; medical advances enabling life to be prolonged versus an individual’s right to refuse treatment that would prolong life*)

**Sample questions:** “How are advances in technology used to protect collective security? How might laws/procedures associated with

these uses of technology conflict with laws guaranteeing individual rights and freedoms?”  
“Given that it is now possible to sequence an individual’s DNA, are there any laws in place to protect people’s right to own information about their personal genetic makeup?”

**C3.3** analyse from a legal perspective the influence of the media, including social media, on public awareness of human rights issues (*e.g., potential for exposing human rights abuses; potential for sensationalizing trivial issues and/or underreporting or neglecting serious issues; potential for bias as a result of concentration of ownership; influence of social media in encouraging political and social activism*)

**Sample question:** “What are some examples of the use of social media to raise awareness of human rights issues, both in Canada and internationally?”

**C3.4** explain how various political and socio-economic factors can influence individual and group attitudes towards human rights issues (*e.g., factors such as: economic conditions; presence or absence of democratic values and institutions; acceptance or non-acceptance of racial, cultural, religious, and linguistic diversity*)

# D. CONTEMPORARY LEGAL ISSUES

## OVERALL EXPECTATIONS

By the end of this course, students will:

- D1. Law and Society:** analyse the role of law in contemporary society (**FOCUS ON:** *Legal Significance*)
- D2. Legal Structures and Processes:** describe laws and processes for dealing with different types of legal offences and disputes in Canada (**FOCUS ON:** *Legal Significance; Interrelationships*)
- D3. Emerging Legal Issues:** explain the legal implications of a variety of current issues, both in Canada and internationally (**FOCUS ON:** *Continuity and Change; Legal Perspective*)

## SPECIFIC EXPECTATIONS

### D1. Law and Society

**FOCUS ON:** *Legal Significance*

By the end of this course, students will:

- D1.1** analyse the role of law in the workplace (e.g., in creating and enforcing legislation related to: workplace health and safety, including the use of chemicals or hygienic food preparation practices, and protection from harassment and violence; professional standards; training requirements; employment standards; employer-employee relations and the collective bargaining process)

**Sample questions:** “What is the purpose of regulations governing food preparation practices for restaurants, daycare centres, seniors’ facilities, and other providers of food services?” “What kinds of legal knowledge would you need to operate a small business?” “What legal issues might arise for an employer who seeks to replace human workers with robotic lines?”

- D1.2** analyse the role of law in protecting the natural environment (e.g., in creating and enforcing legislation related to: the use of natural resources by corporations, air and water quality, recycling, the banning of harmful substances such as bisphenol A [BPA] or pesticides)

**Sample questions:** “Which levels of government and which ministries are responsible for making laws to protect the environment? How are these laws enforced? What kinds of penalties are imposed for breaking these laws? Are the penalties adequate to prevent violations? Why, or why not?” “How do Ontario’s Environmental

Bill of Rights and Environmental Registry provide for public access and government transparency and accountability in relation to environmental initiatives?”

- D1.3** explain the role of law in responding to various contemporary social issues (e.g., in creating and enforcing legislation related to: child and youth protection, prostitution and the sex trade, minimum wages, social assistance programs, the use of recreational drugs, affordable housing, family violence, mental illness, substance abuse, personal security, equitable hiring practices, religious and cultural diversity)

**Sample questions:** “A ‘right to housing’ is included in the 1948 United Nations Declaration of Human Rights. What legislative changes might help to provide access to housing for people who are currently homeless?” “What are the key components of the Supreme Court decision about wearing a niqab in a court of law? Do you agree with the court’s treatment of the rights of religious and cultural minorities?” “Should substance abuse be considered a crime?”

- D1.4** explain the role of law in responding to various contemporary financial issues (e.g., in creating and enforcing legislation related to: fraud, identity theft, consumer protection, false representation, consumer debt, bankruptcy, failure to file taxes)

**Sample questions:** “What agencies can you consult for information about protecting your credit rating or consumer rights?” “What legal organizations are concerned with protecting people from identity theft?”

## D2. Legal Structures and Processes

**FOCUS ON:** *Legal Significance; Interrelationships*

By the end of this course, students will:

**D2.1** describe various types of illegal activities in Canada and the legislation that governs them (e.g., *theft – the Criminal Code of Canada; polluting – the Environmental Protection Act; illegal entry into Canada – the Immigration Act; unfair trade practices – the Consumer Protection Act; drug trafficking – the Controlled Drugs and Substances Act; child support non-payment – the Family Law Act; firing someone for legitimate union activities – Labour Relations Act*)

**Sample question:** “What are the provisions of the Canada Business Corporations Act with respect to insider trading?”

**D2.2** describe various types of procedures that may be used to resolve different types of disputes (e.g., *union-management negotiations, consumer complaints, human rights complaints, benefits appeals, criminal acts*) outside the official court system (e.g., *mediation, arbitration, negotiation, sentencing circle, adjudication, tribunal hearing, ombudsman investigation*)

**Sample questions:** “What are some of the benefits and disadvantages of conventional court sentencing for the offender, the victim, the witnesses, the community, and the courts? What are some of the benefits and disadvantages of a sentencing circle for each of these participants?”

**D2.3** analyse situations in which legal judgements balance the competing rights and interests of individuals, groups, and governments (e.g., *Sharia law versus Canadian law; environmental protection interests versus resource-extraction interests; need for police surveillance and investigation versus privacy rights; rights of assembly and free speech versus need for public order; right to strike versus need for essential services; Aboriginal treaty rights versus provincial hunting and fishing regulations*)

**Sample questions:** “Why are security certificates controversial?” “What are the current requirements for allowing a police search of your personal technology devices?”

## D3. Emerging Legal Issues

**FOCUS ON:** *Continuity and Change; Legal Perspective*

By the end of this course, students will:

**D3.1** explain the legal implications of issues affecting specific demographic groups (e.g., First Nations, Métis, and Inuit groups: *access to safe drinking water, land claims; racialized groups:*

*racial profiling in law enforcement; migrant workers: workplace safety and employment standards; access to legal aid; people with physical disabilities: need for physically accessible public buildings and other services; refugee claimants: access to legal identification, access to legal aid; English or French language learners: access to translators/interpreters when using legal services*)

**Sample questions:** “Why is it important for people whose first language is neither English nor French to be provided with a translator or interpreter during judicial proceedings or a police investigation? What legal issues might arise as a result of the absence of a translator or interpreter?”

**D3.2** explain the legal implications of issues related to public security and protection (e.g., *use of surveillance technology; border security procedures; passport regulations; rights, responsibilities, and safety concerns of law officers and other security personnel; international travel regulations*)

**Sample questions:** “How have specific events such as the 9/11 attacks changed laws and regulations related to security?” “What changes to security laws might be considered in the near future? Why?”

**D3.3** describe the influence of new technologies on various law-related professions (e.g., *technologies such as: wireless communications devices, voice-recognition software, trace evidence processing technology, encryption software for protection of personal information, law-enforcement tools such as tasers, DNA databases, surveillance technology, software for data collection and storage*)

**Sample questions:** “How has the introduction of cellphone cameras challenged the justice system (e.g., in the Robert Dziekański case)?” “How have improvements in DNA testing affected police investigations of previously unsolved cases?” “What are the risks of relying on new scientific tests to determine legal guilt?”

**D3.4** describe the legal implications of various recent international political events, humanitarian crises, and environmental issues (e.g., *the Arab Spring or the Occupy movement – the legal justification for political activism and/or acts of civil disobedience; 9/11 – anti-terrorism legislation versus individual rights; genocides – the international community’s “duty to protect” versus principles of national self-determination; climate change – international agreements versus national priorities*)

**Sample question:** “What legal issues are raised when a government is considering whether to intervene in another country’s civil war?”

# E. LAW IN THE WORKPLACE

## OVERALL EXPECTATIONS

By the end of this course, students will:

- E1. Law and Careers:** describe the educational, training, certification, and other professional requirements for various careers where an understanding of law is important (**FOCUS ON:** *Legal Perspective*)
- E2. Roles and Responsibilities in the Workplace:** analyse the roles and responsibilities of employees, managers, employers, corporations, and governments in the workplace (**FOCUS ON:** *Interrelationships; Legal Perspective*)
- E3. Legal Issues in the Workplace:** analyse legal issues related to the influence of new technologies, environmental concerns, and national and international events on the workplace (**FOCUS ON:** *Legal Significance; Continuity and Change; Interrelationships*)

## SPECIFIC EXPECTATIONS

### E1. Law and Careers

**FOCUS ON:** *Legal Perspective*

By the end of this course, students will:

- E1.1** describe the educational, financial, and legal requirements for pursuing a variety of careers where an understanding of law is important (*e.g., courses, length and cost of programs, certificates, licensing*)

**Sample questions:** “How do the requirements for qualifying as a paralegal differ from those for qualifying as a lawyer?” “What are the prerequisites for a police foundations program?”

- E1.2** identify the personal aptitudes and qualities that are needed in different types of careers where an understanding of law is important (*e.g., physical requirements, such as performance-based fitness standards for police officers; problem-solving skills; empathy; conflict-resolution skills*)

**Sample questions:** “What are the requirements for being accepted for training as a police officer? How would you rank the requirements in order of importance?” “What attributes are useful for a career as a social worker or children’s aid worker?”

- E1.3** describe the type of work, codes of professional conduct, potential employment opportunities, and potential earnings associated

with various careers where an understanding of law is important (*e.g., legal assistant, forensic technologist, game warden, Border Services official, paralegal worker, small business owner, entrepreneur, social worker, court clerk, court interpreter, probation officer, social activist*)

**Sample question:** “What are the responsibilities of various court staff working in a courthouse?”

- E1.4** identify law-related reasons why a person might be barred from entering or remaining in a career (*e.g., a criminal record, scrutiny by a Special Investigations Unit, loss of professional licence or decertification, removal from office, inappropriate conduct with a client*)

**Sample questions:** “What effect might a criminal record have on a person’s career?” “How would you make a complaint about someone working in the legal system (*e.g., police, a lawyer*)?”

### E2. Roles and Responsibilities in the Workplace

**FOCUS ON:** *Interrelationships; Legal Perspective*

By the end of this course, students will:

- E2.1** analyse the roles and responsibilities of unions in the workplace, including their history, purpose, achievements, and limitations (*e.g., with reference to workplace health and safety standards, professional standards including*

training requirements, economic influence, use of collective bargaining, use of strike action)

**Sample questions:** “What is a collective agreement?” “What roles do union and management play in the grievance process?”

**E2.2** analyse the roles and responsibilities of the legislature and judiciary in the creation and implementation of labour and employment protections (e.g., with reference to the *Canada Labour Code*, the *Employment Equity Act*, the use of binding arbitration, the use of back-to-work legislation, the *Employment Standards Act*, designation of an essential service, the process of collective bargaining)

**Sample questions:** “Under what circumstances might a government have a responsibility to intervene in a contract dispute between employers and employees? What types of intervention are legally available to governments?” “What legislation is designed to protect workers in non-unionized workplaces? How would you enforce your workplace rights without a union?”

**E2.3** describe legal obligations that apply to all Canadians – workers and employers – in the workplace (e.g., requirements to: honour contracts, comply with confidentiality agreements, meet health and safety standards, comply with quality control standards, comply with human rights codes, establish and follow codes of professional conduct and practice, file taxes, contribute to the *Canada Pension Plan*)

**E2.4** analyse the legal roles and responsibilities of employers, companies, and corporations (e.g., with reference to: conflicts of interest such as insider trading, non-discriminatory hiring practices, the *Environmental Protection Act*, workplace health and safety, transparency and disclosure obligations)

**Sample questions:** “Do you agree with the Supreme Court of Canada’s decision in *Honda Canada Inc. v. Keays*, 2008? Why did the Women’s Legal Education and Action Fund and other groups intervene in that case?”

### E3. Legal Issues in the Workplace

**FOCUS ON:** Legal Significance; Continuity and Change; Interrelationships

By the end of this course, students will:

**E3.1** analyse legal issues related to the role of new technologies in workplace practices (e.g., need

for safeguards in financial services and medical industries to protect client and patient records from access by unauthorized persons; need for clarification about citizens’ rights related to the use of new technologies in the workplace or police investigations)

**Sample questions:** “How have new technologies led to more ‘whistleblowing’ or made it more difficult for companies to protect corporate confidential information and ‘trade secrets’?” “What legal actions can a company take against employees who may be using technology inappropriately for personal purposes?” “What are some legal issues raised by the potential use of social media to inform hiring practices (e.g., to acquire information about a candidate that it is not legal to ask for directly)?”

**E3.2** explain the impact on the workplace of legal issues related to environmental practices (e.g., health and safety issues related to the handling of hazardous and other industrial waste or to second-hand smoke or other airborne toxins; security, privacy, and health issues related to the disposal of electronic devices)

**E3.3** analyse the effects of various types of national and international laws on business and employment in Canada (e.g., the effect of border security laws on jobs that depend on cross-border trade; the effect of international trade embargoes on jobs in exporting industries; the impact [actual or potential] on Canadian industries of international boycotts targeting Canadian goods for ethical or environmental reasons [seal products, fur, “dirty oil”]; the effect of immigration laws and laws relating to temporary foreign workers on the earnings and job prospects of various types of employees; the role of internal and external trade barriers in protecting specific industries and jobs; the role of free trade agreements in weakening protections for some industries and jobs while expanding opportunities for others)

**Sample questions:** “What is the purpose of legislation allowing Canadian businesses to hire temporary foreign workers? In what ways might the results positively or negatively affect the economy, businesses, and/or individuals?”